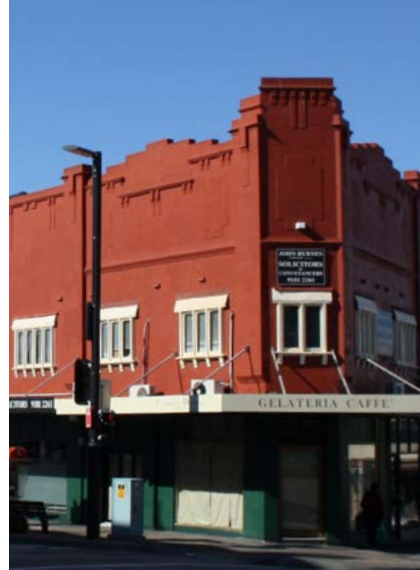




PART C - HERITAGE

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C5 Additional heritage provisions to be considered

C1 Heritage reports to accompany development applications

Decisions affecting a heritage items or place within a conservation area need to be based on a clear analysis of why a place is significant and how proposals affecting the place have been designed to minimise the impact on the significance of the place. Depending on the significance of the place, strategies or policies to ensure the retention of the significance of the place might need to be developed. For this reason, different types of reports may be required for development proposals affecting places in a conservation area and heritage items.

The following outlines the different types of reports and when they may be required.

C1.1 Statement of heritage impact

A statement of heritage impact (also called a heritage impact statement) is an assessment report that analyses and describes how proposed development would affect the heritage significance of a heritage item, place in a conservation area, or development in the vicinity of a heritage item or conservation area. A statement of heritage impact can also propose measures to conserve the significance of a place for example, by stabilisation or repair and the reconstruction or reinstatement of original features.

A statement of heritage impact must be undertaken in accordance with the Department of Planning and Environment guideline *Guidelines for preparing a statement of heritage impact*, 2023.

A statement of heritage impact must also address relevant heritage provisions of the City of Canada Bay Development Control Plan.

A statement of heritage impact for a heritage item must include an assessment of significance undertaken in accordance with the Department of Planning and Environment guideline *Assessing heritage significance*, 2023. The existing heritage inventory sheet for a property is in most cases too brief to properly understand the potential impacts of proposed development on the heritage significance of a place.

C1.2 Conservation policy

A conservation policy explains the principles to be followed to retain or reveal an item's significance. The aim is to show how the heritage significance of the item can be enhanced and maintained. This relies on a full understanding of the item's significance and a review of the constraints and opportunities arising out of that significance.

The policy should be a positive set of guidelines for enhancing a heritage asset and its significance — not a set of restrictive rules. Heritage items that are restrained by inappropriate policies are in danger of having no viable use and are therefore likely to be neglected, falling into disrepair. The policy should be closely-related and cross-referenced to the statement of significance and to the significance of various elements of the item. Some parts of a heritage item, for example, might be more adaptable to a new use; or it may be essential to retain and enhance some views to, and from, the heritage item.

A conservation policy should be concise, and acceptable to all the parties involved in managing the item's future.

C1.3 Conservation management plan

A conservation management plan states the conservation policy and the statement of significance and looks in more detail at achieving the future viability of the item and retaining the maximum heritage significance in future development proposals.

C1.4 Requirements for heritage reports

Objectives

- O1. To ensure heritage reports assist Council to determine the impact of a proposal on the heritage significance of a place.

Controls

C1.	A statement of heritage impact must be submitted with a development application for proposed development to a heritage item or to a place within a heritage conservation area. A statement of heritage impact must also be prepared for developments over two storeys in height where the subject site is in the vicinity of a heritage item or heritage conservation area. The statement of heritage impact must be prepared in accordance with Department of Planning and Environment guideline <i>Guidelines for preparing a statement of heritage impact</i> , 2023. The statement of heritage impact must also address relevant heritage provisions of the City of Canada Bay Development Control Plan.
C2.	A statement of heritage impact for a heritage item must include an assessment of significance undertaken in accordance with the Department of Planning and Environment guideline <i>Assessing heritage significance</i> , 2023.
C3.	A statement of heritage impact for development located within the vicinity of a heritage item or heritage conservation area must address the controls in Part C3 Development in the vicinity of a heritage item or a heritage conservation area of the DCP.
C4.	A development application for proposed development associated with heritage item numbers I21 and I541 within the Bakehouse Quarter, North Strathfield, must be accompanied by a conservation management plan for any individual building concerned.

C5.	A development application for proposed development associated with heritage item number I409, Birkenhead Point, Drummoyne, must be accompanied by a conservation management plan.
C6.	A conservation management plan may be required by Council to be submitted for development to a heritage item other than those stated in controls C4 and C5. The applicant should seek advice from Council's Heritage Coordinator.
C7.	A conservation management plan must be prepared in accordance with the Heritage Council of NSW guideline <i>Guidance on developing a conservation management plan</i> , 2021. (Further information in relation to conservation management plans is available on the Heritage NSW website.)

C2 Development of heritage items

Heritage items have been identified as places that should be retained and conserved for future generations. The heritage significance of these places must be understood and respected when designing future development.

C2.1 Setting

Setting is the area around a heritage item that contributes to its heritage significance and may include the visual catchment of a heritage item. Topography, trees, gardens, outbuildings, fencing, and pavement can all contribute to the setting of a heritage item. Where a heritage item is a landmark, it is particularly important that new development does not obscure its visual presence in the streetscape and/or townscape. Secondary dwellings are generally not acceptable on the site of a heritage item due to the adverse impact on the visual curtilage and landscape setting of heritage items.

Objectives

- O1. To ensure an appropriate visual setting for heritage items, including consideration of landscaping, fencing and car parking.
- O2. To ensure that new development respects the contribution of a heritage item to the streetscape and/or townscape.
- O3. To ensure that new development does not adversely impact the setting of a heritage item.

Controls

C1.	Elements that contribute in a positive way to the setting of a heritage item, including things such as gardens, fences, driveways, seawalls etc must be retained and conserved.
C2.	Alterations and additions must not be visually intrusive, and should be located behind a built heritage item.
C3.	Ancillary structures at places of heritage significance such as secondary dwellings, swimming pools and outbuildings should be located at the rear so that they do not impact on the setting of the heritage item.

C4.	Cut and fill or other work that changes the landform around a heritage item should generally be limited to 1m. Basements under heritage items are not acceptable
C5.	Secondary dwellings are only possible on sites that are large enough to retain a landscape setting around the house commiserate with the scale of the house, including a backyard with trees.
C6.	Secondary dwellings must not detract from the setting of a heritage item.
C7.	The heritage item must retain its importance in the streetscape and/or townscape.

C2.2 Scale

Scale is the size of a building and its relationship with its surrounding buildings or landscape. It is important that new development at places of heritage significance respects the scale of the existing buildings and/or landscape elements that contribute to the significance of the place.

Objective

- O1. To ensure that additions to a heritage item and new buildings on the site of a heritage item are of a scale consistent with the heritage item.
- O2. To ensure that the heritage item remains the visually dominant element on the site.

Controls

C1.	Alterations and additions to a heritage item should not be larger in scale than the heritage item and should preferably be single storey.
C2.	Development of a larger scale than the heritage item is allowable only if the new development is visually subservient, will not detract from the aesthetic qualities of the place, is sufficiently separated from the heritage item to retain an appropriate setting, and important views of the heritage item are retained.

C2.3 Form and detailing

The form of a building is its overall shape and volume and the arrangement of its parts. The rooflines of buildings, and elements such as chimneys, parapet walls, verandahs etc are often important elements of the form of a heritage item. It is also important that alterations and additions do not have the potential to reduce the structural integrity of an existing building. Building detailing is important as it greatly contributes to the aesthetic values a heritage building.

Objectives

- O1. To ensure that important elements of the form of a heritage item are not obscured or destroyed by alterations and additions.
- O2. To ensure that the form of a heritage item retains its importance in the streetscape and/or townscape.
- O3. To ensure that important interior spaces are retained.
- O4. To ensure that alterations and additions do not have a detrimental impact on the structural integrity of a heritage item.

Controls

C1.	Important elements of a heritage item, such as walls, roofs, windows, doors, chimneys, parapets, decorative elements, verandahs, joinery, gable ventilators, etc must not be demolished, must retain their integrity (including structural integrity), and must not be obscured by alterations and additions. Where it is not possible to retain an original building or landscape component, the new component is to match the original. Missing original components of the heritage item should be replaced.
C2.	Verandahs on the front and sides of a heritage item must not be infilled. Original verandahs that have been enclosed should be reinstated as open verandahs.

C3.	Additions must be attached to the original part of the building as building wings or skillion roofed additions with a wall plate height no higher than the original building, or as linked pavilions. Additions must be set behind the main body of the existing building. Additions must not be higher than the ridgeline of the existing building and the original roof of the building must be retained in its whole. Pavilion additions must be set at least 1.5 metres apart from the original house and connected by a lower element.
C4.	New development, and alterations and additions to heritage buildings, must not detract from the visual importance of the heritage item.
C5.	Mock historical details should not be applied, as they will not be of any heritage value themselves and can confuse our understanding of what is 'old' and 'new'.
C6.	"Pop top" additions (an additional form extruding above the roof rather than above the external walls below) are not acceptable.
C7.	Important interior spaces and elements must be retained, and conserved using traditional techniques.
C8.	Alterations and additions must result in a final building that is a visually cohesive whole.
C9.	Where it is not possible to retain an original building or landscape component, the new component is to match the original.
C10.	Missing original components of the heritage item should be replaced.
C11.	The use of modern finishes including stencilled concrete for driveways is not permitted.

C2.4 Materials and colours

The appropriate selection of materials and colours is very important to ensuring that the aesthetic qualities of a heritage item are conserved. Development that includes changing roof materials, re-skinning of brickwork, rendering or painting of face brickwork, and inappropriate textured finishes can degrade the character of a heritage item.

New buildings on the site of a heritage item, and additions and alterations should take into consideration the original materials and colours of the heritage item. While it is not always necessary to exactly match the materials and colours of the original building, new materials and colours must be carefully selected to ensure they complement the original building and ensure that the new work blends in rather than stands out.

Objectives

- O1. To ensure that original materials that contribute to the significance of heritage items are not obscured.
- O2. To ensure that colours of paintwork on heritage items are consistent with the significance of the heritage item.
- O3. To ensure that external materials and colours of new development relate well to the materials and colours of the heritage item.

Controls

C1.	Original materials of heritage items must not be replaced with different materials or materials of different colour.
C2.	Non-original materials of heritage items that are being replaced shall be replaced with material that matches the original material as closely as possible.
C3.	Painting or rendering original face brick walls and sandstone is not permitted. New weatherboards for timber houses must match the material and profile of the original. Re-roofing should use materials that match the original.
C4.	The detail and texture of original rendered finishes should not be changed.

C5.	Materials for additions and alterations to heritage items should be harmonious with the original materials of the heritage item. Generally, materials and colours must match the original.
C6.	Colour schemes for heritage items should have a hue and tonal relationship with traditional colour schemes for the period and style of the heritage item.
C7.	The use of fluorescent paint and primary colours on heritage items is not permitted.

C2.5 Doors and windows

The spacing, proportions and detailing of doors and windows of heritage items usually contributes greatly to their aesthetic appeal. Altering windows and doors or adding new openings can dramatically affect the character of a building.

Objectives

- O1. To retain original windows and doors that contribute to the aesthetic quality and/or significance of a heritage item.
- O2. To reinstate lost details that contributed to the aesthetic qualities and/or significance of a heritage item.
- O3. To retain the proportions of walls and openings that contribute to the aesthetic quality of a heritage item.
- O4. To ensure that original or significant doors and windows are not obscured or altered by fittings and additions.

Controls

C1.	Original or significant windows and doors in important elevations of a heritage item must be conserved.
C2.	Where original or significant windows and doors in important elevations of a heritage item have been removed, and replacement of the new joinery is proposed, the original windows and/or doors must be reconstructed.

Controls

C3.	Roller shutters, security bars and grilles are not permitted on window and door openings that have a frontage to the street or that are adjacent to public open space.
C4.	Additions to external doors, including security screens and grilles, must not obscure or distort the original form of doors or the character and significance of the building.
C5.	New windows and doors must be: a) carefully located to retain the original relationship of solids and voids, and the pattern of openings; and b) of proportions, materials and details similar to existing windows and door openings in the building.
C6.	New dormer and roof windows of a house should be located on rear roof slopes in preference to roof slopes visible from the street.
C7.	New dormer windows visible from the street are only be possible on houses of style and period appropriate for dormer windows. These dormers must be: a) located to complement the original design of the building; and b) of proportions and details to complement the original character of the building.
C8.	Extensive areas of glazing are not permitted unless this feature was a feature of the original design of the building visible from the public realm.
C9.	New skylights are not permitted in roof slopes visible from the public realm.

C2.6 Car parking

Garages and carports can have a detrimental impact on the aesthetic qualities of heritage items. Garages and carports in front of the building line obscure views of the buildings and disrupt its contribution to the streetscape. The proportions of garage doors do not relate to the smaller and more vertical proportions of windows and doors that are usually found on heritage items.

Objective

- O1. To ensure garages and carports do not detract from the setting of a heritage item.
- O2. To ensure garages and carports do not interrupt views to heritage items.
- O3. To ensure garages and carports retain the heritage values of a place and have a good relationship with existing significant buildings.
- O4. To encourage the retention of original garages.

Controls

C1.	Original or significant garages should be retained and conserved.
C2.	Garages and carports must be detached and located as far behind the front building alignment as possible. The minimum setback is 3 metres from the main wall (not a verandah wall).
C3.	Garages must not be incorporated into the main body of the heritage item or the front façade of a heritage item.
C4.	Where a new garage or carport is on the same side of a building as a side verandah, the garage or carport must be detached and located entirely behind the end of the verandah by at least 1m.
C5.	New car parking structures must be visually recessive.
C6.	Double garages, unless located in the backyard behind the main building, are not acceptable.
C7.	Basement parking is not permitted.

Controls

C8.	Garages and carports must be single storey. Additional storeys above a garage are not acceptable. An attic may be possible for a garage located on a rear lane provided: a) there is no adverse impact on the setting of the heritage item and views to the heritage item; and b) the attic is wholly contained within the roof space; and c) the garage has a maximum height of 5.4 metres; and d) the roof slope is between 25° and 35°; and e) the garage does not extent boundary to boundary but has a minimum side boundary setback of 1.5 metres; and f) if the lot is less than 13 metres wide the maximum garage width is 7 metres, or if the lot is greater than 13 metres has a maximum width of 9 metres.
C9.	Original existing building fabric or garden elements of a heritage item must not to be demolished or altered to provide a carparking structure or hard stand area.
C10.	Garages, carports and hard stand areas must not adversely affect the setting of a heritage item. They must not be located in front gardens or require the removal of trees.

C2.7 Fencing

Fencing, particularly fencing facing the street, is of particular importance in establishing the setting of a heritage item. Fencing should complement the style and scale of the house.

Objectives

- O1. To conserve gates and fences that are early or contemporary with heritage items.
- O2. To ensure that new fences and gates are in keeping with the character of the heritage item.
- O3. To ensure that the aesthetic quality of the heritage item is not diminished by inappropriate fencing.

Controls

C1.	Fencing and gates that are original or early components of the heritage item must be retained and conserved.
C2.	Fences that return from the front fence to the front wall of the house must not be higher than the front fence.
C3.	New fencing and gates to a heritage item should be of a style and scale that is consistent with the style of the building.
C4.	Unless documentary or physical evidence is provided to establish a greater height, fencing forward of the building line constructed of solid material such as masonry, should not be greater than 900mm in height above the adjacent public footpath level.
C5.	Unless documentary or physical evidence is provided to establish a greater height, fencing forward of the building line constructed of (non-solid) material such as timber pickets, metal palisades or wrought metal should not be greater than 1.2m in height above the adjacent public footpath level.
C6.	Original face brick or sandstone fencing to a heritage item must not be painted.
C7.	Colorbond steel fences are not acceptable.
C8.	Side and rear boundary fences behind the building line must be traditional lapped timber paling fences.

C2.8 Landscape elements including paving and driveways

Landscape elements are of great importance in contributing to the aesthetic quality of heritage items. The design of front gardens usually provides a setting for the building and reinforces the character of the heritage item.

Objectives

- O1. To retain important landscape elements that contribute to the significance of heritage items.
- O2. To reinforce the qualities of the heritage item through appropriate landscaping.

Controls

C1.	Original driveways and footpath crossings that relate to a heritage item must be retained. The design and materials of the original driveway should be retained, and if missing, replaced.
C2.	New driveways should be pairs of driveway strips of off-white or red oxide concrete, or brick on edge, with grass or ground cover between.
C3.	There must be only one driveway and the width of the driveway must be minimised. Double driveways and footpath crossings are not permitted.
C4.	Original or early garden layouts and plants that contribute to the significance of the heritage item must be retained.
C5.	New trees must be planted in the case where it is proposed to remove existing trees.
C6.	Established trees, shrubs, boundary planting and garden layouts that contribute to the significance of the heritage item must be retained. This includes trees in the public domain which may be affected by development.
C7.	When designing new gardens, surviving plants and garden elements which indicate the basic garden structure, must be incorporated into new appropriate designs that complement the style of the building.
C8.	Garden space must be sufficient to accommodate a large spreading tree, lawn, and shrubbery, in the backyard of a house.

C2.9 Outbuildings

Early or significant outbuildings, such as sleep-outs, shade-houses and pergolas, are important in contributing to the aesthetic quality, setting and story of use and development of a place.

New outbuildings such as garden sheds, outhouses, gazebos and pool pavilions can easily detract from the setting of heritage items. The location and setting of these must be carefully considered so that they have minimal impact on important views of heritage items.

Objective

- O1. To minimise visual intrusion on views of heritage items due to outbuildings.
- O2. To ensure original significant outbuildings are conserved.

Controls	
C1.	Original significant outbuildings, including sleep-outs, shade-houses and pergolas, must be retained and conserved.
C2.	New outbuildings and other auxiliary structures must be located in the rear yard of heritage items.
C3.	Outbuildings and other auxiliary structures must be single storey and designed so that they have no impact on important views of heritage items.
C4.	Outbuildings and other auxiliary structures must not be integrated with a garage or carport.
C5.	Double garages, unless located in the backyard behind the main building, are not acceptable.

C2.10 Services

Careful consideration must be given to the introduction of new services so that they do not adversely affect the positive aesthetic qualities of a place or important building fabric or landscaping. New services include things such as lifts, air-conditioning, telecommunications, water management, fire protection measures, solar panels etc.

Objective

- O1. To ensure that new services are designed and located so they do not adversely affect the aesthetic values of the place.
- O2. To ensure that new services do not require the removal or obstruction of built and landscape features that contribute to the heritage values of the place.

Controls	
C1.	New services must not damage built and landscape features that contribute to the heritage significance of a place.
C2.	New services must be located where they do not disrupt the aesthetic qualities of a place.
C3.	Air-conditioning units must not be located on roofs if this would result in the units being visible from the public domain.
C4.	Telecommunication elements such as conduits and junction boxes must not be located on front facades.
C5.	Storm water detention tanks, water storage tanks, sumps, grated drains, and the like must not be located within the front setback, except in the case that they are located below a driveway. Above ground detention basins must not be located in front gardens.
C6.	Kiosk substations and fire hydrant boosters must be located where they will have the least visual impact, and must be integrated into the landscape scheme.

Controls

C7.	Services such as television aerials and satellite dishes are to be located on rear facing roof slopes so the elements have limited visual impact and will not be visible from the public domain.
C8.	Services, including solar panels, must not be located on slate roofs.
C9.	Solar panels must not be located on roofs and walls facing primary roads, and must be set close to and parallel with the roof plane below.
C10.	Services should not be higher than the main ridge line of a building that is or is part of a heritage item and shall be located so that they are not visible from the public realm.
C11.	Lifts, if required, must be installed where existing building fabric and spaces have little or no significance. Lifts must not be visually intrusive.
C12.	Fire services must respect existing building fabric and details, including minimising changes and being appropriately located.
C13.	New service must not interrupt significant spaces and building fabric.

C2.11 Demolition

Full demolition of heritage items is generally not permissible. Partial demolition of heritage items is possible subject to the merits of the proposal.

Outbuildings that relate to heritage items can be demolished if the demolition does not impact on the significance of the heritage item.

Objective

- O1. To retain buildings that are of heritage significance or components of the site that contributes to the significance of a heritage item.

Controls

C1.	Buildings that are listed as heritage items, or components of the site of a heritage item that contribute to the significance of a heritage item, must not be demolished.
C2.	Partial demolition of a heritage item or of its significant components is only acceptable, where there is no impact on the heritage significance, or when the condition of fabric is such that its failure is imminent. In the latter case, the reconstruction of demolished fabric may be required.
C3.	Where demolition is proposed due to the condition of a heritage item, a supporting report from a suitably qualified and experienced heritage engineer is required.

C2.12 Subdivision

The site on which a heritage item is located usually contributes to the heritage significance of a heritage item, and may include structures and landscaping strongly associated with the heritage item. The grounds also provide a setting for a heritage item and can also ensure that important views to or from a heritage item are available. Subdivision can result in the loss of historic values, and adversely impact the setting of a heritage item.

Objectives

- O1. To ensure that subdivision of a heritage item does not result in a loss of appropriate curtilage for the heritage item.
- O2. To ensure that subdivision of a heritage item does not potentially result in development that would obscure important views to or from the heritage item.
- O3. To ensure that subdivision does not degrade the heritage values of a heritage item.

Controls

C1.	Subdivision of the site of a heritage item must ensure that an appropriate curtilage is retained for the heritage item.
C2.	The relationship between key elements that are important to the heritage item must be maintained.
C3.	Subdivision of land that includes a heritage item is not allowed unless it can be established that proposed or future development on the created allotments will not adversely impact on the setting of a heritage item or important views to or from the heritage item.
C4.	Subdivision must not be undertaken where a heritage item is located on an allotment that contributes to heritage values of the item.

C2.13 Signs

Many commercial buildings built in the late nineteenth and early twentieth century incorporate areas on the main façade designed for locating a sign to identify the business operating within. This allows for appropriate signage while the unity of the streetscape is retained.

Residential heritage items can be obscured by inappropriate signage. For most late nineteenth century and early twentieth century buildings, house names are often incorporated into the building or placed on a small sign fixed to a wall near the front door.

Objectives

- O1. To allow for appropriate signage on heritage items.
- O2. To ensure the original details of heritage items are not obscured by inappropriate signage.

Controls

C1.	All commercial signs on a heritage item or a building in heritage conservation area are to be restrained in visual prominence, of design compatible with style of the building, of high standard of materials, construction and graphics, and carefully placed in an appropriate location avoiding damage to the significant fabric.
C2.	Any sign proposed for a heritage item is to be consistent with the recommendations of any approved Signs Strategy forming part of a development consent or the policies and recommendations of any Conservation Management Plan applying to the heritage item.
C3.	Signage should include clear business identification by name and type, and should not include contact details, products offered or promotional messages. Graphics may be assessed for potential impact on heritage values.

Controls	
C4.	New signs should be located in areas or elements of buildings that have traditionally been used for signage. Signs between the awning level and the parapet of a heritage item or a building in heritage conservation area are not permissible.
C5.	Shops in heritage listed buildings or in conservation areas are limited two signs per frontage, and other commercial tenants one sign per frontage from these types: a) Awning fascia sign, b) Under-awning sign, and c) Above-entry (hamper) sign.
C6.	In addition to the above, commercial tenants including shops are permitted traditional gilded lettering to glass. Areas under lettering should be limited to 5% of the overall glass area.
C7.	In addition to the above, commercial tenants including shops are permitted intrinsic sign types, such as written in the pavement, in tile work, etc. Any new intrinsic signs are to be designed and installed sympathetically with regard to existing intrinsic signs. In cases this may result in the potential locations for new signs being restricted or unavailable. Significant intrinsic signs in lead lighting or windows, painted on walls or as raised lettering in render must be conserved in situ. Any other significant existing signs need to be retained.
C8.	Internally illuminated signs are not permitted on a heritage item unless they are a reconstruction of an original significant sign.
C9.	Externally illuminated signs are permitted only where cabling and conduit supplying power to the sign is completely concealed and does not involve intervention in or damage to significant fabric.

C10.	The installation of any sign on a heritage item is to be carried out in a reversible manner without damage to the significant fabric. In the case of a sign affixed to any stone or brick wall of a heritage item the sign is to be fixed in such a way that stone is not damaged and any fixings are put only onto mortar joints.
C11.	The consent authority shall have regard to the name of a heritage item and whether or not the name is significant before allowing its building name sign to be changed. On some buildings this may mean that the building name may not be changed.

C2.14 Adaptive reuse

Adaptive reuse of buildings is a process that changes a place that is no longer suitable for its original purpose, to a place that can be used for a new purpose. It is desirable both for environmental sustainability and heritage conservation.

Reusing historic buildings has long term benefits for the community. Adaptive reuse allows buildings that are valued by the community to be retained for future generations. Sometimes it is the only way a place can be conserved for the future.

In many cases, adaptive reuse will involve few if any changes to a building. Where changes are needed to a building of heritage significance, it is important to first understand why the place is significant. Changes should then ensure that significant aspects of the place are conserved and that new development respects the significance of the place.

All buildings have "embodied energy": the energy consumed by all the processes involved in producing materials, delivering them to site and constructing the building. New buildings have high energy costs. In 2001, new buildings accounted for about 40% of annual energy and raw materials consumption. According to the Australian Greenhouse Office, the reuse of building materials can save approximately 95% of embodied energy. Adaptive reuse of buildings is also an important part of sustainable development.

General

Objectives

- O1. To encourage adaptive reuse of buildings which are no longer suitable for their original use.
- O2. To ensure that adaptive reuse of heritage items respects the significance of the place.
- O3. To ensure that the impacts of adaptive reuse on heritage items is minimised.

Controls

C1.	Where original use is discontinued, adaptive reuse which requires minimal change to fabric may be considered.
C2.	Where adaptive reuse requires unacceptable degree of change due to legislative compliance, alternative solutions may be sought, or the proposed change of use may not be supported.

Building Design

Objectives

- O4. To ensure that alterations and additions to a building as a result of adaptive reuse relate to the architectural qualities of the existing building.
- O5. To ensure that changes to the building as a result of adaptive reuse can be interpreted in the future as belonging to its applicable historical period.

Controls

C3.	Additions to a building as part of adaptive reuse should be designed to respect the original architectural qualities of the building such as building form, façade articulation, fenestration pattern, parapet profile and detail, materials and colours.
C4.	Retention of only the facades of the building is not acceptable.
C5.	New work necessary in the adaptive reuse of a heritage item should be distinguishable from original work on a close inspection.

Structure

Objective

- O6. To retain original building structure and fabric.

Controls

C6.	Fire engineered solutions should be sought to allow retention of original structural systems that would otherwise not meet “deemed to comply” provisions of the Building Code of Australia.
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C2.15 Structural Integrity

Objectives

- O1. To ensure alterations and additions do not have a detrimental impact on the structural integrity of the heritage item.

Controls

C1.	Alterations and additions are to be supported by a report, prepared by a suitably qualified and practicing structural engineer, certifying that the works will not jeopardise the structural integrity of the building, and will not cause existing finishes and details to fail.
C2.	Where new structural elements are required in relation to a building (such as in the case of basement excavations or additional storeys) these elements must be shown on the architectural drawings submitted with the development application.

C2.16 Conservation Works

Conservation works to a heritage item help to ensure that the heritage values of a place will be retained and enhanced. They are particularly important in circumstances where original features are in poor conditions, have been unsympathetically altered, or are missing. Conservation works must be guided by advice from suitably qualified and experienced people

Objectives

- O1. To retain and enhance the heritage values of heritage items.
- O2. To ensure that heritage items are enhanced through replacement of irreparable or missing elements and the reinstatement of important original interior spaces.
- O3. To ensure authentic restorations or reconstruction, based on documentary (research) or physical evidence.

Controls

C1.	Comprehensive conservation works to the heritage item and, if appropriate, its grounds, must be undertaken in the case of subdivision.
C2.	Where a large addition or extensive alterations are proposed to a heritage item, conservation works are to be undertaken to the item.
C3.	Adaptive re-use proposals must include conservation works.
C4.	Conservation works must be undertaken to the heritage item when a secondary dwelling is proposed.
C5.	Conservation works must be described in a detailed schedule and using detail drawings and submitted with the development application.
C6.	Originally open verandahs that have been enclosed should be reinstated as open verandahs.
C7.	Important features, elements and spaces that have been lost should be reinstated.

C2.17 Secondary dwellings

Secondary dwellings are desired by many people for family members or to provide an additional source of income. However, they need to be carefully designed and sited in order to ensure that the setting of the heritage item is not adversely affected. The backyard, as well as the front garden, forms part of the setting of a heritage item, often containing elements that have an important relationship to the original house, such as original garages, as well as trees and other significant garden components. In most cases it is likely that a secondary dwelling on the site of a heritage item is not appropriate with regard to its heritage impacts. It is important that secondary dwellings do not constrain the ability of an existing residence to meet the needs of a contemporary family, for instance by such things as a large family/kitchen/dining area overlooking and opening to a good sized backyard.

Objectives

- O1. To ensure that secondary dwellings do not detract from the heritage significance of the item.
- O2. To ensure that the heritage items which were designed as single family homes are not constrained in their ability to be changed and added to in order to meet the needs of a contemporary family.
- O3. To ensure that heritage items retain an appropriate visual curtilage.
- O4. To ensure that elements on a site that contribute to the heritage values of the item are not lost as a result of a secondary dwelling.

Controls

C1.	Secondary dwellings must be visually subservient to the heritage item by a considerable degree. They must be single storey unless incorporated into a two storey house.
C2.	Secondary dwellings, where appropriate, must be of minimal footprint and scale.
C3.	Secondary dwellings must not result in the loss of an appropriate setting for a heritage item, in particular, a good sized backyard able to be planted with tall trees which have a spreading canopy as these must be provided.
C4.	In the case of houses that are heritage items, secondary dwellings must not constrain the ability of a house to function well for a contemporary family, as this would place the heritage house at risk of potential future unsympathetic changes.
C5.	A secondary dwelling formed by adding a second storey to an existing garage is not permitted.
C6.	Secondary dwellings must not be integrated with a garage or carport.

C3 Development in the vicinity of a heritage item or a heritage conservation area

Development near heritage items and a heritage conservation area can have adverse impacts on these places if they detract from their setting. This may be as a result of blocking views, introducing new constructions that are unsympathetic to the streetscape or area, and/or by removing trees or other landscape elements.

New development can also have an adverse impact by reducing the landmark qualities of a heritage item. New development in the vicinity of a heritage item should take into consideration the importance of that item in the local streetscape or townscape, and the impact of the proposed new development on the streetscape setting. Where a heritage item has importance as a landmark, it is particularly important that new development in the vicinity of the heritage item does not obscure its visual presence in the streetscape and/or townscape.

New development may adversely impact the setting of a heritage conservation area by introducing development that is sharply in contrast with the character of the existing setting or with the desired future character of a precinct.

Setting is the area around a heritage item or heritage conservation area that contributes to its heritage significance and may include the visual catchment of a heritage item. Topography, trees, gardens, fencing, and pavement can all contribute to the setting.

C3.1 General

Objectives

- O1. To provide an appropriate visual setting for heritage items and heritage conservation areas, including through appropriate landscaping, fencing and car parking.
- O2. To ensure the setting of heritage items and heritage conservation areas is not compromised by new development.
- O3. To ensure that new development respects the contribution of heritage items and heritage conservation areas to the streetscape and/or townscape.
- O4. To ensure that new development in the vicinity of a heritage item does not detract from the importance of the heritage item in the streetscape.

Controls

C1.	Development in a streetscape of buildings of consistent style, form and materials, in the vicinity of a heritage item or a heritage conservation area must incorporate elements of the dominant style, form, massing, height, and materials in the streetscape, including the rhythm of buildings in the streetscape and the pattern of openings.
C2.	New development in the vicinity of a heritage item or a heritage conservation area must not visually dominate the setting of a heritage item or a heritage conservation area.
C3.	Development in the vicinity of heritage items and heritage conservation area must not adversely affect the setting by introducing an uncharacteristic building or element.
C4.	Important views to or from a heritage item must not be impacted or obscured by new development.
C5.	Car parking of new development must not be a visually prominent streetscape element or to markedly different from that of the heritage item or heritage conservation area in the vicinity.
C6.	Development adjacent to a heritage item or a heritage conservation area must not jeopardise the structural integrity of the heritage item and components of its site, nor the structural integrity of components (including buildings) of a heritage conservation area.

C3.2 Scale

Scale is the size of a building and its relationship with its surrounding buildings or landscape. Buildings of inappropriate scale, in the vicinity of a heritage item, can detract from its contribution to the streetscape and/or townscape.

Objective

- O1. To ensure that new development in the vicinity of a heritage item is of a scale that does not undermine the significance of the heritage item.

Controls

C1.	Development in the vicinity of a heritage item should not have a scale, bulk or height that is incongruous with the setting of the heritage item.
C2.	Development of a larger scale is allowable only if the new development will not be visible from the public realm.
C3.	The form of proposed new development of a larger scale must be modulated to reduce its apparent bulk.

C3.3 Siting

Siting relates to the position of the building on the site and includes the orientation of a building in relation to the street as well as the setbacks of the building from the boundaries.

Setbacks define the overall footprint of a building and the outer extremities of that building in relation to the front, side and rear boundaries.

Setbacks of buildings in the vicinity of heritage items can be of importance in ensuring the retention of important views to and from the heritage item. In some cases, it is also necessary to consider the potential impact of the building on important landscape elements associated with the heritage item.

Objectives

- O1. To ensure new development in the vicinity of a heritage item is sited so that it does not obscure important views to or from the heritage item.
- O2. To ensure that new development in the vicinity of a heritage item does not adversely impact landscape elements that are, or are associated with, a heritage item.

Controls

C1.	The setback of new development (including alterations and additions) in the vicinity of a heritage item should ensure that important views to or from the heritage item are not adversely impacted.
C2.	The setbacks of new development in the vicinity of a heritage item or heritage conservation area should ensure that landscape elements associated with the heritage item or heritage conservation area retain the important aspects of their relationship with the heritage item or heritage conservation area.
C3.	The setbacks of new development in the vicinity of a built heritage item should generally be equal to or greater than that of the heritage item.
C4.	The side and front setbacks of new development must be similar to the spacing of contributory buildings in the heritage conservation area in the vicinity.
C5.	New buildings must conform to the orientation pattern of the heritage item or heritage conservation area.

C3.4 Materials and Colours

New development should take into consideration the dominant original materials of heritage items in the vicinity of the development. Materials should be selected so that attention is not drawn away from the heritage item to the new development.

Objective

- O1. To ensure that new development in the vicinity of a heritage item does not detract from the importance of the heritage item in the streetscape.
- O2. To ensure that external materials and colours off new development in the vicinity of heritage conservation areas are compatible with those of the conservation area.

Controls

C1.	Materials and colours for development in the vicinity of a heritage item shall be selected to avoid stark contrast of the adjacent development where this would result in the visual importance of the heritage item being reduced.
C2.	Materials for new development in the vicinity of a conservation area must be compatible with the materials and colours of the dominant contributory buildings in the conservation area.

C3.5 Landscaping

Landscape elements make an important contribution to the setting of heritage items and heritage conservation areas.

Objective

- O1. To ensure new development in the vicinity of a heritage item or heritage conservation area retains and enhances the landscape setting of heritage items and conservation areas.
- O2. To ensure that landscape elements that contribute to the significance of a heritage item or heritage conservation area, but that may not be part of the heritage item or heritage conservation area, are retained.

Controls

C1.	Established tree canopies must be retained. Development must not adversely affect the health and viability of a tree.
C2.	Established gardens that contribute to the setting of a heritage item or heritage conservation area must be retained.
C3.	New front fences must be visually compatible with the front fence of the heritage item in the vicinity or those of the heritage conservation area in the vicinity.
C4.	Landscape elements that have a significant historical or aesthetic relationship to the heritage item or heritage conservation area must be retained and protected.

C4 Development in Heritage Conservation Areas

Heritage Conservation Areas (Conservation Areas) usually have a strong streetscape or townscape character resulting from development of similar style, scale, form and materials during a relatively short period of time. However, a conservation area is more than a place that looks good because of its streetscape, design, neighbourhood amenity, or the individual buildings it contains. Conservation Areas have a sense of place which is hard to define and hard to replace. This is because their character reflects not just the buildings in the area, but also the reasons for the buildings, the changing social and economic conditions over time, and the physical responses to those changes.

For development within a conservation area, it is important to appreciate the character and significance of that area when designing additions, alterations or infill development. An analysis of key aspects of each Conservation Area is given in Appendix 1. Appendix 1 also provides maps indicating if a property is considered to be a contributory item to the conservation area (i.e. it is considered to contribute to the heritage value of the Conservation Area) or whether it is considered to be neutral in the conservation area or whether it is considered to be infill development (i.e. it does not contribute to the heritage value of the Conservation Area).

For work to buildings within a conservation area, the following guidelines should be read in conjunction with the description and analysis of the relevant conservation area found in Appendix 1.

The following outlines the criteria for determining whether a place is considered to be contributory, neutral or infill within the conservation area.

- **Contributory:** Built during a period directly relating to the significance of the conservation area as identified in the statement of significance for the conservation area. The original form of the building is substantially intact, or where they have been altered, are recognisable and unsympathetic changes are reversible.
- **Neutral:** Neutral buildings are those that neither contribute nor detract from the history and character of a conservation area.
- **Detracting:** Detracting buildings are buildings that are intrusive in a heritage conservation area. They do not represent a key period of significance and detract from the character of a heritage conservation area.

C4.1 General

Setting relates to the space and details around buildings in a conservation area that contribute to its heritage significance and may include the visual catchment of a conservation area. Street trees, gardens, fencing and pavement can all contribute to the setting of a conservation area. The setback of buildings from the street and the space between buildings also contribute to the setting of a place.

Objectives

- O1. To maintain and enhance the existing character of the streetscape of a conservation area.
- O2. To ensure that new development respects the established patterns in the streetscape of a conservation area, including setbacks, siting, landscaped settings, carparking and fencing.
- O3. To ensure that the character of the conservation area is retained and enhanced.
- O4. To ensure contributory buildings, places and components of conservation areas are retained and not demolished.
- O5. To enhance the contribution of neutral and detracting buildings, places and components to the conservation area.

Controls

C1.	Contributory buildings and components of a heritage conservation area must be retained, conserved, and enhanced. This includes gardens and tree canopies.
C2.	Neutral buildings must be retained and their contribution to the conservation area greatly enhanced, unless it can be demonstrated that this is not feasible, and that the replacement building and the associated works, will make a greater contribution to the conservation area than the existing building and associated site elements eg gardens, trees and fences.

Controls

C3.	Detracting buildings and site elements are encouraged to be demolished or altered so long as the replacement building and associated site works will make a greater contribution to the conservation area than the existing building and its associated site elements eg gardens, trees and fences.
C4.	New work in a heritage conservation area is to respect the relevant contributory components of that conservation area.
C5.	New development must be consistent with the streetscape rhythm of contributory buildings in the conservation area.
C6.	New buildings must conform to the orientation pattern of existing contributory buildings in the conservation area.
C7.	No new structures can be built forward of the established street building line – on both primary and secondary street frontages.
C8.	The established landscape character of the locality, including the height of the tree canopy and density of boundary landscape plantings, must be retained in any new development.
C9.	Additions are to be set behind the main body of the existing house so that they have limited visibility.
C10.	The heritage item, where contributory, is to be the visually dominant element of a site.
C11.	Maintain the historical pattern of development of individual buildings on separate allotments of land separated by garden space.
C12.	Maintain front garden areas with lawns and associated pathways as traditional garden settings for houses.
C13.	Development must follow the natural slope of grounds. Cuts, excavation or infill of natural ground levels should be limited to 1 metre.

C14.	Conservation works to contributory buildings and elements of the conservation area must be undertaken if the following is proposed. • a large addition • adaptive re-use • a secondary dwelling
C15.	Conservation works must be described in a detailed schedule with accompanying detail drawings and must be lodged with the development application.

C4.2 Scale

Scale is the size of a building and its relationship with its surrounding buildings or landscape. It is important that new development in conservation areas respects the scale of the existing buildings and/or landscape elements that contribute to the significance of the conservation area.

Objectives

- O1. To ensure that new development in a conservation area is of a scale consistent with the existing development in the vicinity of the site that contributes to the character of the heritage conservation area.
- O2. To ensure that additions and alterations to a building within a conservation area are of a scale consistent with the contributory buildings in the conservation area.
- O3. To ensure that landmark buildings which will generally be surrounded by buildings of lower scale are not diminished by large scale development in the vicinity.

Controls

C1.	Development must keep and repeat the single storey scale of similar original buildings that contribute to the conservation area, including the wall height.
C2.	New buildings should utilise architectural language compatible to that of the area and the immediate streetscape, including scale, roof form and slope, massing, proportions, fenestration patterns, materials, finishes, colours and other features.
C3.	First floor additions are not permitted if they require changes to the main roof of an existing house.
C4.	Rear additions are to be formed within existing side setbacks of the house.
C5.	The maximum wall plate height of an addition must not exceed the wall plate height of the existing house, as measured externally from the ground to under the eaves.
C6.	The scale of proposed alterations and additions must not overwhelm that of the main body of the existing building. The main body of the existing building must remain the visually dominant built form in the streetscape. In the case of a house, the main part of the house is generally set under the main roof.
C7.	Side walls must not exceed 7 metres in length.

C8.	Council may consider an addition taller than the main body of a house provided: a) the addition has a pavilion form; b) the original roof design and features are retained and remain clearly apparent; c) the scale of the building does not disrupt the continuity of the scale and character of houses when viewed from the street; d) the roof space above the original house is not integrated with the addition; e) the addition is visually recessive; f) conservation works to the existing house are undertaken; and, g) other relevant development controls are satisfied.
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C4.3 Form and detailing

The form of a building is its overall shape and volume and the arrangement of its parts. The rooflines of buildings, and elements such as chimneys, parapet walls, verandahs etc can contribute greatly to the character of an area.

Objectives

- O1. To ensure that the form and detailing of new development relates positively to the character of the conservation area.
- O2. To ensure that buildings that contribute to the character of a conservation area retain their importance in the streetscape and/or townscape.
- O3. To encourage authentic restoration or reconstruction based on documentary (research) or physical evidence.

Controls

C1.	Preferred forms of additions are linked pavilions or single storey skillion extensions. An alternative option, which will be considered on its merits, is to extend the existing roof over a single storey addition. In this case the new roof must match the form and slope of the existing roof and be set below the existing main ridge.	C9.	Keep existing roof forms on original houses visible in their original form. Additional rooms above the existing main body of the house should be within the existing roof space as seen from the street, ventilated by flat in-plane windows facing the rear. Alterations of roof form, dormer windows, or mansard roofs are not supported.
C2.	Important elements of the form of a contributory building, such as main roof forms, chimneys, parapet walls, verandahs etc, must be retained, must also retain their integrity (including structural integrity), and must not be obscured by alterations and additions.	C10.	Open verandahs visible from the public domain are to be retained.
C3.	The roof forms of new buildings must complement the original roof forms of nearby contributory buildings.	C11.	Inappropriate changes, such as the enclosure of front verandahs, are to be reversed.
C4.	The roof forms of additions must complement that of the existing main roof of the house, if it is a contributory building.	C12.	"Pop top" style roof additions are not permitted.
C5.	Chimneys and roof features (eg ventilation gables and louvres) must not be removed from contributory buildings.	C13.	Original features of contributory buildings in conservation areas are to be retained and repaired. If missing, they are to be replaced.
C6.	Additions and alterations to existing buildings that contribute to the character of a conservation area should not detract from the original form of the existing building as viewed from the public realm.	C14.	New work in heritage conservation areas comprised of shopping strips must: • relate to the established forms, massing, proportions, and details of the conservation area; • ensure the street wall height reflects the established wall height (generally two storeys); • ensure that the contributory buildings remain the prominent built elements in the streetscape; • ensure that contributory buildings that have more than their front façade visible retain their three dimensional form; • avoid "facadism" (the retention of only the front façade); • ensure that the rhythm of buildings in the streetscape is maintained; and, • ensure that additional storeys, if permitted, are set well back and are visually recessive in mass, scale, materiality and colours.
C7.	Additions should utilise architectural language compatible to that of the original building. This includes scale, massing, roof form and slope, proportions, fenestration patterns, materials, finishes, colours and other externally visible features.		
C8.	The treatment of the street façade of new development should relate to existing nearby buildings that contribute to the conservation area. This should include consideration of the massing and modifications of the building, proportions of verandahs, rhythm of openings, and height.		

Controls

C15.	Pavilion style additions: • Links to a rear pavilion style addition must be set below the existing eaves and must have a minimum width of 1.5 metres (ie the distance from the rear wall of the main section of the existing house to the wall of the higher part of the proposed addition). • The wall plate height may be 1 metre higher than the existing wall plate height such that the roof space can be used for a first floor. • The external wall material and colour must be the same as the ground floor. • The roof must have a simple pitched form with a single ridge and a roof slope to match that of the main roof of the house. • The roof ridge of the pavilion may be 1 metre higher than the highest ridge of the main roof. • Large dormers must be located on a rear roof plane. A single small dormer may be located on a side roof plane. • Colours and materials must blend in with those of the retained house. In particular, wall and roof materials and colours must match those of the retained section of the existing house.
C16.	New development and additions to buildings located on corner allotments must appropriately address the side street with regard to scale, form, materials and colours. It may be that the scale of an addition will need to be limited to a single storey.
C17.	The roof space above the original house should not be integrated into an addition but should remain separate. Original roof forms should be reinstated.
C18.	Additions must not be made to the front or sides of the main body of an original house.

C4.4 Siting

Siting relates to the position of the building on the site and includes the orientation of a building in relation to the street as well as the setbacks of the building from the boundaries.

Most buildings in a conservation area are oriented to the street frontage. The regular orientation of buildings contributes to the pattern and rhythm of the streetscape.

Setbacks define the overall footprint of a building and the outer extremities of that building in relation to the front, side and rear boundaries. In conservation areas, setbacks are of greater importance in establishing the continuity of the streetscape. Side setbacks are also of importance in providing separation between buildings and establishing a rhythm in the streetscape. Rear setbacks are also important as they provide space a backyard where trees can be planted. The canopies of trees in the backyard is an important characteristic of many of Council's heritage conservation areas.

Objectives

- O1. To retain the established pattern buildings and gardens in the streetscape.

Controls

C1.	The front setback for new work is to be consistent with the existing front setbacks typical for the street for contributory development, or in the case where setbacks differ, the front setback is to be the average of the setbacks of the immediately adjoining buildings on either side.
C2.	Side setbacks (including alterations and additions) must match the pattern of adjacent and nearby contributory development. In the case of residential areas, this will often include a greater setback on one side of the development to provide vehicular access at the side of a property.
C3.	The orientation of development must follow the established pattern of contributory development in the conservation area.

Controls

C4.	Development must be sited to avoid harming the health and viability of existing trees that contribute to the conservation area.
C5.	Rear setbacks must be sufficient to ensure a good sized back yard is retained/provided. The size must be sufficient to plant an appropriately sized tree.
C6.	Additions are to be located behind the original main body of the existing house.

C4.5 Materials and colours

The quality of many of the conservation areas in Canada Bay is reinforced by the use of a cohesive palette of materials and colours. Use of sympathetic materials and colours can help new development to blend into existing streetscapes.

Development that includes changing roof materials, reskinning, rendering or painting of face brickwork can degrade the character of a conservation area.

New development should take into consideration the dominant original materials of contributory development in the conservation area. Where there are contributory buildings of differing materials in close proximity to the proposed development, the building that reflects the dominant period of development in the conservation area should be given greater consideration when selecting materials.

Objectives

- O1. To encourage external materials consistent with the original materials of existing contributory building stock in a conservation area.
- O2. To encourage colour schemes which complement the style of the building and character of the conservation area.

Controls

C1.	Original materials of contributory buildings in conservation areas should not be replaced with different materials, or with materials of different colours.
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C2.	Development must use materials and colours predominant in the conservation area, such as face brick, clay tiles, and painted timber. Do not use hearted, speckled, multicoloured or textured bricks in light colours, or glazed roof tiles. Preference is given to materials in darker, recessive colours.
C3.	Non-original materials of existing contributory buildings in conservation areas that are being replaced shall, if possible, be replaced with material that matches the original material as closely as possible.
C4.	Painting, rendering, bagging or re-skinning of face brickwork and sandstone is not permitted.
C5.	Painting or rendering original face brick walls is not permitted, and re-skinning may exceptionally be considered where condition of fabric does not allow its further retention. Timber houses are to be re-clad with timber weatherboards of a profile to match the existing.
C6.	Materials and colours must be compatible with the original house if it is contributory. Wall and roof materials and colours of an addition to a contributory building must match those of the main body of the house – to ensure the addition blends in rather than stands out. In the case of a building that is not contributory, materials and colours must match the original materials and colours of the dominant contributory buildings in the conservation area.
C7.	Colour schemes must have a hue and tonal relationship similar to that of traditional colour schemes for the dominant style of development in the conservation area.
C8.	The use of fluorescent paint and primary colours is not permitted.
C9.	Re-roofing should use materials matching original.
C10.	The use of modern finishes, including stencilled concrete for driveways, is not permitted.

C4.6 Doors and Windows

The spacing, proportions and detailing of doors and windows of buildings in or in the vicinity of conservation areas usually contributes to the quality of the streetscape. Altering windows and doors or adding new openings can dramatically affect the character of a building and gradually erode the character and streetscape of a conservation area.

Objectives

- O1. To retain original door and window details of contributory buildings in conservation areas.
- O2. To ensure that original or significant doors and windows are not obscured or altered by fittings and additions.
- O3. To ensure that fenestration patterns and proportions are consistent with original development in the conservation area.

Controls

C1.	Extensive areas of glazing are not permitted for doors and windows visible from the public realm on buildings.
C2.	Original door and window openings visible from the public realm on contributory buildings should not be widened.
C3.	Original doors and windows visible from the public realm on contributory buildings should be conserved.
C4.	Roller shutters, security bars and grilles are not permitted on window and door openings that have a frontage to the street or that are adjacent to public open space.
C5.	Additions to external doors, including security screens and grilles, should not obscure or distort the form of doors or the original character of buildings.
C6.	New door and window openings to contributory buildings that are visible from the public realm should be of proportions and details that relate to existing door and window openings.

C7.	Where non-original joinery to doors and windows that are visible from the public realm is being replaced, the details of the new joinery should be based evidence of the original joinery to doors and windows in the building.
C8.	Skylights should be located on rear roof slopes where they will not be visible in the public realm.
C9.	Dormer windows are not appropriate.
C10.	Doors and windows for new development (including alterations and additions) must be sympathetic to the character of the conservation area.

C4.7 Car parking

Garages and carports can have the greatest detrimental impact on the aesthetic qualities of conservation areas. Garages and carports in front of the building line obscure views of the contributory buildings and break the rhythm and pattern of the streetscape. The proportions of garage doors does not relate to the smaller and more vertical proportions of windows and doors usually found on contributory buildings within conservation areas.

Objective

- O1. To ensure that garages and carports are designed to minimise the visual impact on the streetscape of conservation areas.

Controls

C1.	Where garages have historically been located in backyards, this placement is required. Where this is not the case, garages and carports must be set back a minimum of 3 metres from the front wall of the house (not the front of a verandah or porch).
C2.	Garages and carports should not be incorporated into the building.
C3.	Where possible, garages are to be located on the rear lane.
C4.	Maintain the established pattern of one opening per allotment for car access. Any new vehicular crossover must avoid tree protection zones of street trees.

Controls

C5.	Driveways and crossovers should be made of concrete, bitumen, gravel, dark bricks or other non-obtrusive material. Wheel tracks with central grass/planting are preferred to fully paved driveway space.
C6.	Carports may be sited beside the house only where they: a) are constructed of light weight frame of timber or metal, without wall, screen or door enclosures b) stand at least 1 m back from the front wall of the building (not the front wall of the verandah/porch), c) and are fully detached from the building and do not obstruct light into the building.
C7.	Carports are not to be located in front gardens.
C8.	Hardstand car spaces set in the front gardens are in most cases not acceptable. In cases where they are considered appropriate, they must be a single car space, and paved with dry pressed smooth faced bricks set on edge. The creation of a hardstand space must not require extensive excavation, changes to the front of the existing building, or the loss of important landscape elements.
C9.	Garages and carports must be sized for a single car unless they are set in the backyard or are not visible.
C10.	Garages and carports must not adversely impact original architectural or garden features visible from the public domain.

C11.	Attics above garages are permitted where the garage is located on a rear lane provided: a) there is no adverse impact on the character of the public domain; and b) the attic is wholly contained within the roof space; and c) the garage has a maximum height of 5.4 metres; and d) the roof slope is between 25° and 35°; and e) the garage does not extent boundary to boundary but has a minimum side boundary setback of 1.5 metres; and f) if the lot is less than 13 metres wide the maximum garage width is 7 metres, or if the lot is greater than 13 metres has a maximum width of 9 metres.
C12.	Basement parking is not permitted.

C4.8 Fencing

Fencing (including gates), particularly fencing facing the street, is of particular importance in conservation areas. Consistent and uniform fencing can contribute significantly to the streetscape and character of a conservation area. Fencing should complement the style and scale of the house. Inappropriate fencing can detract from the streetscape by interrupting the pattern of development and by obscuring views.

Objectives

- O1. To conserve gates and fences that are early or contemporary with contributory buildings in a conservation area.
- O2. To ensure new fences and gates are consistent with the character of the conservation area and in particular with contributory housing in a conservation area.
- O3. To ensure that the quality of the streetscape or townscape in a conservation area is not diminished by inappropriate fencing in or in the vicinity of a conservation area.

Controls	
C1.	Keep existing fences that are contemporaneous with the house.
C2.	For new developments use low fences and gates designed to complement the building behind and to be compatible with the character of the conservation area.
C3.	For contributory houses, allow new front fences under 1.2m high appropriate to style and period of the house, including wire mesh, timber, or brick. New timber picket fences are supported only where these are a historical feature of the area. Low brick fences topped with timber railings are not supported. Lych gates and arbours may be acceptable if accurate reconstructions of originals. Sliding gates and automated gates are not supported.
C4.	Unless documentary or physical evidence is provided to establish a greater height, fencing forward of the building line constructed of solid material such as masonry, should not be greater than 900mm in height above the adjacent public footpath level. In all cases, the height of fencing should relate to the style of the house and width of the allotment.
C5.	Unless documentary or physical evidence is provided to establish a greater height, fencing forward of the building line constructed of material such as timber pickets, metal palisades or wrought metal should not be greater than 1.2m in height above the adjacent public footpath level.
C6.	Original face brick or sandstone fencing in a conservation area should not be painted.
C7.	Original sandstone walls are to be retained and repaired if necessary.
C8.	Side and back boundary fences must be traditional lapped timber paling fences. Colorbond steel fences are not permitted.
C9.	The width of the driveway gates must be minimised.
C10.	Driveway gates must not be sliding gates.

C4.9 Landscape elements including paving and driveways

Landscape elements are of great importance in contributing to the aesthetic quality of conservation areas. They can often be landmarks and contribute to the setting of a building. The design of front gardens provides a setting for the house and reinforces the character of the place. In many conservation areas, street plantings are an integral part of the original design of the area.

Objectives

- O1. To retain important landscape elements and the landscape setting that contribute to the significance of conservation areas.
- O2. To reinforce the original and significant qualities of the conservation area through appropriate landscaping.

Controls	
C1.	Street trees in conservation areas should not be removed to allow for new development.
C2.	Original garden features as well as established trees, shrubs, boundary planting and garden layouts that contribute to the significance of the conservation area must be retained and conserved. If original landscaping elements have been removed they should be reinstated.
C3.	New front gardens must complement the style of the building and character of the conservation area.
C4.	A front path leading from the front gate to the front door must be provided. It must be separated from the driveway by a garden bed or lawn unless there is evidence that there was not a separate front path.
C5.	When designing new gardens, reference should be made to surviving plants and garden elements which indicate the basic garden structure, and can be worked into new appropriate designs.

Controls	
C6.	Front gardens must be mostly landscaped area with the only paved areas being the front path and the driveway. Shrubs must be planted in a garden bed along the front boundary. An appropriate sized tree should also be planted in the front garden.
C7.	Storm water detention tanks, sumps, grated drains and the like must not be located in the front garden unless they are under the driveway. Above ground detention basins must not be located in the front garden.
C8.	Existing driveways and footpath crossings that relate to original development in a conservation area should not be relocated.
C9.	Double driveways and footpath crossings will not be permitted in conservation areas.
C10.	New driveways should be pairs of driveway strips constructed of off-white or red oxide coloured concrete, or brick on edge, with grass or ground cover between. Alternatively, the driveway could be brick on edge (if wheel strips not used).
C11.	A garden bed planted with shrubs must be provided along the boundary side of any driveway and hard stand car parking space.
C12.	New paving must be appropriate to the style of the building and character of the conservation area.
C13.	Keep at least 60% of the site as garden space. Council will consider a minimum garden space of 50% where allotments are less than 700 m ² . Swimming pools, paved hard stands and other artificial areas are not considered part of garden space.
C14.	Backyards must be largely comprised of landscaped areas capable of supporting a tree commensurate with the size of the backyard. The backyard must have at least one tree.

C4.10 Outbuildings

Early or significant outbuildings, such as sleep-outs, shade-houses and pergolas are important in contributing to the aesthetic quality, setting and story of use and development of a place.

New outbuildings such as garden sheds, outhouses, gazebos and pool pavilions can easily detract from the quality of the streetscape. The location and setting of these must be carefully considered so that they have minimal impact on the streetscape.

Objective

- O1. To minimise visual intrusion on the streetscape of the conservation area and views from public places due to outbuildings.

Controls	
C1.	Original or significant outbuildings including sleep-outs, shade-houses and pergolas should be retained and conserved.
C2.	Outbuildings should be located in the rear yard of properties within a conservation area.
C3.	Outbuildings should be single storey and designed so that they have no impact, on the streetscape and setting.

C4.11 Services

Careful consideration must be given to the introduction of new services so that they do not adversely affect the positive aesthetic qualities of a place or important building fabric or landscaping. New services include things such as lifts, air-conditioning, telecommunications, water management, fire protection measures, solar panels etc.

Objectives

- O1. To ensure that new services are designed and located so they do not adversely affect the aesthetic values of the place.
- O2. To ensure that new services do not require the removal or obstruction of built and landscape features that contribute to the heritage values of the place.

Controls

C1.	New services must not damage built and landscape features that contribute to the heritage significance of a place.
C2.	New services must be located where they do not disrupt the aesthetic qualities of a place.
C3.	Air-conditioning units must not be located on roofs if this would result in the units being visible from the public domain.
C4.	Telecommunication elements such as conduits and junction boxes must not be located on front facades.
C5.	Storm water detention tanks, water storage tanks and the like must not be located within the front setback, except in the case that they are located below a driveway.
C6.	Kiosk substations and fire hydrant boosters must be located where they will have the least visual impact, and must be integrated into the landscape scheme.
C7.	Services such as television aerials and satellite dishes are to be located on roof slopes facing the rear of a property. Services must not be located on slate roofs.
C8.	Services should not be higher than the main ridge line of a building and should be located so that they are not visible from the public realm in a conservation area.

C4.12 Demolition

Demolition of buildings within a conservation area can gradually diminish the qualities of the conservation area. It is important that contributory buildings in the conservation area are retained.

Objective

- O1. To retain the contributory buildings in a conservation area.

Controls

C1.	Contributory buildings within a conservation area must not be demolished.
C2.	Post WWII additions to contributory buildings in a conservation area that are not visible from the public realm may be demolished subject to assessment of the contribution that the additions make to the heritage value of the conservation area.
C3.	Demolition of rear outbuildings is generally acceptable.
C4.	Demolition of original garages is permitted if it can be demonstrated that they are no longer functional. In this case an archival photographic record will be required.
C5.	Demolition of important elements and features, such as original main roofs, verandahs, windows, and front fences, is not permitted

C4.13 Subdivision

The subdivision patterns of many conservation areas is important in the existing streetscape. The regular sizes of blocks together with the regular setbacks of buildings helps to establish a rhythm to the streetscape. Consolidation of allotments often results in larger buildings that have an undesirable impact on the pattern of the streetscape. Similarly, subdivision of allotments can result in development with inadequate setbacks and/or narrow allotments that break the pattern of the streetscape.

Objective

- O1. To retain subdivision patterns that contribute to the rhythm of streetscapes in conservation areas.

Controls

C1.	Consolidation of allotments of an early subdivision within a heritage group or heritage conservation area is not allowed.
C2.	Subdivision of allotments of an early subdivision within a conservation area is not allowed.
C3.	New subdivision within a heritage group or heritage conservation area must reinforce the original pattern of development within the heritage group or heritage conservation area.

C4.14 Signs

Many commercial buildings built in the late nineteenth and early twentieth century incorporate areas on the main façade designed for locating a sign to identify the business operating within. This allows for appropriate signage while the unity of the streetscape is retained.

Residential streetscapes in conservation areas can be obscured by inappropriate signage. On most late nineteenth century and early twentieth century buildings, house names are incorporated into the building or placed on a small sign fixed to a wall near the front door.

Church signage must be consistent with the original placement and extent of signage.

Objectives

- O1. To allow for appropriate signage on commercial buildings in conservation areas
- O2. To ensure the original details of buildings in conservation areas are not obscured by inappropriate signage.
- O3. To ensure that signage does not have a detrimental impact on residential parts of conservation areas.

Controls

C1.	All commercial signs are to be restrained in visual prominence, of design compatible with style of the building, of high standard of materials, construction and graphics, and carefully placed in an appropriate location avoiding damage to the significant fabric.
C2.	Signage should include clear business identification by name and type, and should not include contact details, products offered or promotional messages. Graphics may be assessed for potential impact on heritage values.
C3.	New signs should be located in areas or elements of buildings that have traditionally been used for signage. Signs between the awning level and the parapet of a heritage item or a building in heritage conservation area are not permissible.
C4.	Shops are limited two signs per frontage, and other commercial tenants one sign per frontage from these types: a) Awning fascia sign, b) Under-awning sign, and c) Above-entry (hamper) sign.
C5.	In addition to the above, commercial tenants including shops are permitted traditional gilded lettering to glass. Areas under lettering should be limited to 5% of the overall glass area.

Controls

C6.	In addition to the above, commercial tenants including shops are permitted intrinsic sign types, such as written in the pavement, in tile work, etc. Any new intrinsic signs are to be designed and installed sympathetically with regard to existing intrinsic signs. In cases this may result in the potential locations for new signs being restricted or unavailable. Significant intrinsic signs in lead lighting or windows, painted on walls or as raised lettering in render must be conserved in situ. Any other significant existing signs need to be retained.
C7.	Internally illuminated signs are not permitted unless they are a reconstruction of an original significant sign.
C8.	Externally illuminated signs are permitted only where cabling and conduit supplying power to the sign is completely concealed and does not involve intervention in or damage to significant fabric.
C9.	The original name of building must be retained where it is significant.

C4.15 Conservation Works

Conservation works help to ensure that the heritage values of a place will be retained and enhanced. They are particularly important in circumstances where original features are in poor conditions, have been unsympathetically altered, or are missing. Conservation works must be guided by advice from suitably qualified and experienced people.

Objectives

- O1. To retain and enhance the heritage values of a conservation area.
- O2. To ensure that heritage conservation areas are enhanced through replacement of irreparable or missing elements and the reinstatement of important original elements of a building or garden.
- O3. To ensure authentic restorations or reconstruction, based on documentary (research) or physical evidence.

Controls

C1.	Comprehensive conservation works must be undertaken: • in the case of subdivision of a contributory property; • where a large addition or extensive alterations are proposed; and, • when a secondary dwelling is proposed
C2.	Conservation works must reinstate missing original features and repair damaged original elements. Conservation works can encompass front gardens and front fences as well as buildings. Originally open verandahs that have been enclosed should be reinstated as open verandahs.
C3.	Conservation works must be described in a detailed schedule with accompanying detail drawings and must be lodged with the development application.

C4.16 Secondary Dwellings

Secondary dwellings (granny flats) are desired by many people for family members or to provide an additional source of income. They can be additions to the existing dwelling, a conversion of part of the existing dwelling, or the construction of a detached dwelling. In each case need to be carefully designed to ensure that the heritage values and character of the heritage conservation area are not adversely affected. It is important that secondary dwellings do not constrain the ability of an existing residence to meet the needs of a contemporary family, for instance by such things as a large family/kitchen/dining area overlooking and opening to a good sized backyard, as this may put pressure on the existing house to be unsympathetically altered.

Secondary dwellings depend for their amenity on the amenity of the property on which they are located. They therefore need to share in this amenity eg the private space of the backyard.

Secondary dwellings facing rear lanes should be accessed through the front of the property as rear lanes typically do not have continuous footpaths and do not have active surveillance.

Objectives

- O1. To ensure that secondary dwellings do not detract from the heritage significance of the heritage conservation area.
- O2. To ensure that single family homes are not constrained in their ability to be changed and added to in order to meet the needs of a contemporary family.
- O3. To ensure that existing houses retain an appropriate visual curtilage.
- O4. To ensure that elements on a site that contribute to the heritage values of a heritage conservation area are not lost as a result of a secondary dwelling.

Controls

C1.	Secondary dwellings must be visually subservient to the main house by a considerable degree.
C2.	Secondary dwellings must be single storey unless they are incorporated into a two storey house.
C3.	Secondary dwellings, where separate structures, must be located in the backyard, and must be set back from the side and rear boundaries sufficient to allow a garden setting around the secondary dwelling, unless the secondary dwelling is located adjacent to a rear lane.
C4.	In the case of houses that are heritage items, secondary dwellings must not constrain the ability of a house to function well for a contemporary family, as this would place the heritage house at risk of potential future unsympathetic changes.
C5.	Secondary dwellings must not result in the loss of any landscape features that contribute to the heritage values and character of the conservation area, in particular, a good sized backyard able to be planted with trees, the canopies of which contribute to the streetscape.
C6.	A path from the front gate associated with the house to the entrance of the secondary dwelling must be provided. The primary entry to secondary dwellings must not be from a rear lane.

C5 Additional heritage provisions to be considered

This DCP contains a number of heritage provisions that are not contained within Part C. Refer to the heritage provisions in the following parts, where relevant:

PART B - General Controls

- B1 Accessibility
- B2 Telecommunications and radiocommunications

PART G - Local Centres

- G2 General Requirements
- G3.1 Victoria Road Drummoyne
- G3.2 Five Dock Town Centre

PART I - Signage and Advertising

PART K - Special Precincts

- K4 Breakfast Point
- K7 Edgewood and Kendall Inlet (former Dulux site)
- K16 Rhodes East
- K20 Kings Bay (PRCUTS)
- K21 Burwood Concord (PRCUTS)
- K23 160 Burwood Rd, Concord (former Bushells Factory)

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